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May 30, 2018					
FEDERAL	MARITIME	COMMISSION			

FEDERAL MARITIME COMMISSION

DOCKET NO. 17-02

HANGZHOU QIANWANG DRESS CO., LTD.

v.

RDD FREIGHT INTERNATIONAL INC.

ORDER ON MOTION TO COMPEL AND SETTING BRIEFING SCHEDULE

I. Summary

The notice of filing of complaint and assignment starting this proceeding was issued on March 2, 2017, over a year ago. On August 23, 2017, an amended complaint was filed, in partial response to a show cause order. On October 11, 2017, an order was issued discharging the show cause order and establishing a schedule. The schedule required the completion of all discovery by December 22, 2017. On December 18, 2017, an order was issued barring service of additional discovery requests as the deadline for serving additional discovery requests had passed without any requests being filed. Complainant was scheduled to file its opening brief on January 12, 2018.

On February 1, 2018, an order compelling responses to discovery was issued, noting that “neither party has fulfilled its discovery obligations.” The February 1, 2018, order required additional discovery to be filed, vacated the scheduling order, and required the parties to appear at a telephone conference. Telephone conferences were held on March 15, 2018, and March 21, 2018. On March 21, 2018, an order was issued permitting Respondent to file a motion to compel.

On April 6, 2018, Respondent filed a motion to compel discovery from Complainant (“Motion”). On April 20, 2018, an order was issued providing additional time for Complainant to respond to the motion to compel. On May 7, 2018, Complainant’s opposition to Respondent’s motion to compel was filed (“Opposition”). As explained below, the motion to compel is granted in part and denied in part; discovery is complete; and the parties are ordered to present their cases to the undersigned through written briefs, according to the schedule below. *If the parties fail to meet the deadlines in this order, a ruling against them may be issued.*

II. MOTION TO COMPEL

Respondent seeks to compel answers from Complainant for seven questions. In Complainant's opposition, it provides additional information that clarifies its answers. Complainant states that for document request number 2, "we did not find anything else," for number 5, "No investigation was done," and for number 6, "We attempted to contact the customer however they refused to take our phone calls." Opposition at 1-2. Complainant states that for interrogatory 1, "we already provided the names," for interrogatory 3, "we have provided all we plan to rely on," and for interrogatory 4, "We are not aware of any statements." Opposition at 3-4. These answers are sufficient.

Interrogatory 6 asks Complainant to state the contentions that they will assert in support of the complaint and in defense to the counterclaims. Complainant states in its opposition that "We intend to respond once discovery is completed." This answer is non-responsive and deficient. This case has been pending for over a year. Every attempt has been made to provide sufficient time to ensure that the parties exchange and complete discovery. Indeed, the initial deadline for the close of discovery has passed and the parties have been specifically ordered to provide discovery to each other. However, Complainant has indicated its contentions in its complaint and subsequent filings.

Respondent's motion to compel is hereby **GRANTED IN PART AND DENIED IN PART**. Complainant will not be required to file an additional response. However, Complainant will not be allowed to rely on any documents or information that should have been produced in discovery but was not produced.

At this point, all discovery should have been exchanged between the parties. The parties will now need to present their cases by filing written proposed findings of facts and briefs containing their legal arguments with an appendix containing the documents on which they rely.

III. BRIEFING SCHEDULE

June 29, 2018	Hangzhou Qianwang to file (1) proposed findings of fact, (2) brief, and (3) appendix.
July 30, 2018	RDD Freight to file (1) response to Complainant's proposed findings of fact, (2) RDD Freight's proposed findings of fact, (3) brief, and (4) appendix.
August 14, 2018	Hangzhou Qianwang may file (1) a reply to RDD Freight's proposed findings of fact and (2) reply brief. A reply may not raise new grounds for relief or present matters that do not relate to the response and must not reargue points made in the opening motion.

IV. REQUIREMENTS FOR DOCUMENTS

Failure to file any of these required documents by their due date, and to provide certification that the document was sent to the opposing party, may result in a decisions adverse to that party.

A. Hangzhou Qianwang Filing Requirements

Hangzhou Qianwang must file, by June 29, 2018, the following three documents. Copies of all of these documents should be sent to secretary@fmc.gov; judges@fmc.gov; and to RDD Freight's attorney. Hangzhou Qianwang must include a certificate of service showing that the three documents were sent to RDD Freight's attorney.

1. Proposed Findings of Fact

This document must set forth proposed findings of fact in numbered paragraphs. Each paragraph must be limited as nearly as practicable to a single fact. Each fact must be followed by an exact citation to evidence that the party contends will support the proposed finding of fact; *i.e.*, a page number in the Appendix. *See* 46 C.F.R. § 502.214. The pages should be numbered. The party filing Proposed Findings of Fact must provide an electronic copy of the Proposed Findings of Fact in a word-processing format *to all parties and to the Office of Administrative Law Judges*.

2. Complainant's Brief

The brief should contain the party's legal arguments. A party's brief must meet the requirements of Commission Rule 214 (46 C.F.R. § 502.214) with the exception that the proposed findings of fact required by section 502.214(c)(2) must be included in the Proposed Findings of Fact described above. The pages should be numbered. The pages of the Proposed Findings of Fact do not count toward the page limitation stated in Commission Rule 214(e). The party filing a brief must provide an electronic copy of the brief in a word-processing format *to the Office of Administrative Law Judges*.

3. Complainant's Appendix¹

The documentary evidence on which a party bases its Proposed Findings of Fact must be included in an Appendix in the following format:

¹ The parties can see examples of the format required for the Proposed Findings of Fact ("Served October 4, 2007, Procedural Order, Attachment A Administrative Law Judge Tentative Findings of Fact") and the Appendix ("Served October 4, 2007, Procedural Order, Attachment A Administrative Law Judge Tentative Findings of Fact, Appendix") in the proceeding *Clutch Auto, Ltd. v. International Touch Consolidator, Inc.*, FMC No. 1880(F), accessed from the Commission's web site through "Docket Activity Logs."

1. The cover of the appendix must identify the party or parties that prepared the appendix; *e.g.*, “Complainant’s Appendix.”
2. The pages of the appendix must be numbered sequentially.
3. The appendix must begin with a table of contents identifying each document and identifying the appendix page at which each document begins and noting if any pages are entitled to confidential treatment.
4. Each party must ensure that all documents in its appendix are legible.
5. The parties are instructed, to the extent practicable, to cite to a document in an appendix already in the record rather than include the same document in its own appendix. For instance, if Respondent contends that a document included in Complainant’s appendix rebuts the evidence Complainant claims supports a proposed finding of fact, Respondent should cite to Complainant’s appendix rather than include a second copy of the same document in its own appendix.
6. The parties should include in the appendix only those pages necessary to identify the document and support its proposed fact. For instance, if support for a party’s proposed fact is found on pages 79 and 80 of a deposition transcript, the party should include the cover sheet, pages 79 and 80, and only those preceding and following pages necessary for context, not the entire deposition transcript.
7. If a party includes documents in a language other than English in its appendix, Commission Rule 7 required an English translation verified under oath to be accurate:

Every document, exhibit, or other paper written in a language other than English and filed with the Commission or offered in evidence in any proceeding before the Commission under this part or in response to any rule or order of the Commission pursuant to this part, must be filed or offered in the language in which it is written and must be accompanied by an English translation thereof duly verified under oath to be an accurate translation.

46 C.F.R. § 502.7. Unless the document has already been translated by another party, the party who wants to use the document must supply the translation.

8. The parties must avoid including multiple copies of the same document in the appendix.

B. RDD Freight Filing Requirements

RDD Freight must file, by July 30, 2018, the following four documents. Copies of all of these documents should be sent to secretary@fmc.gov; judges@fmc.gov; and to Hangzhou Qianwang. RDD Freight must include a certificate of service showing that the documents were sent to Hangzhou Qianwang.

1. Respondent's Proposed Findings of Fact

This document must set forth proposed findings of fact in numbered paragraphs. Each paragraph must be limited as nearly as practicable to a single fact. Each fact must be followed by an exact citation to evidence that the party contends will support the proposed finding of fact; *i.e.*, a page number in the Appendix. *See* 46 C.F.R. § 502.214. The pages should be numbered. The party filing Proposed Findings of Fact must provide an electronic copy of the Proposed Findings of Fact in a word-processing format *to all parties and to the Office of Administrative Law Judges*.

2. Response to Complainant's Proposed Findings of Fact

This document must set forth verbatim each proposed finding of fact to which it responds, then admit or deny the proposed finding. Each proposed finding of fact that the responding party denies must be followed by an exact citation to evidence that the responding party contends will rebut the evidence the proposing party claims supports the proposed finding of fact. The pages should be numbered. The party filing a Response to Proposed Findings of Fact must provide an electronic copy of the Response in a word-processing format *to all parties and to the Office of Administrative Law Judges*.

3. Respondent's Opposition Brief

The brief should contain the party's legal arguments. A party's brief must meet the requirements of Commission Rule 214 (46 C.F.R. § 502.214) with the exception that the proposed findings of fact required by section 502.214(c)(2) must be included in the Proposed Findings of Fact described above. The pages should be numbered. The pages of the Proposed Findings of Fact do not count toward the page limitation stated in Commission Rule 214(e). The party filing a brief must provide an electronic copy of the brief in a word-processing format *to the Office of Administrative Law Judges*.

4. Respondent's Appendix

The documentary evidence on which a party bases its Proposed Findings of Fact must be included in an Appendix in the same format as the Complainant's Appendix. Respondent's appendix should not include any documents that were already included in Complainant's appendix.

C. Hangzhou Qianwang Reply

Hangzhou Qianwang may file a reply brief with legal arguments rebutting the arguments made in RDD Freight's brief and may file a reply to Respondent's Proposed Findings of Fact. These are the last documents that the parties should file prior to an initial decision being issued. These documents should be filed by August 14, 2018, and should include a certificate of service.

1. Complainant's Reply Brief

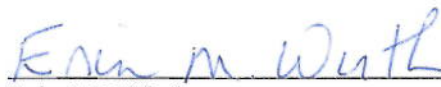
The reply brief should contain the party's legal arguments. A party's brief must meet the requirements of Commission Rule 214 (46 C.F.R. § 502.214). The pages should be numbered. A reply may not raise new grounds for relief or present matters that do not relate to the response and must not reargue points made in the opening motion. The party filing a brief must provide an electronic copy of the brief in a word-processing format *to the Office of Administrative Law Judges*.

2. Reply to Respondent's Proposed Findings of Fact

This document must set forth verbatim each proposed finding of fact to which it responds, then admit or deny the proposed finding. Each proposed finding of fact that the responding party denies must be followed by an exact citation to evidence that the responding party contends will rebut the evidence the proposing party claims supports the proposed finding of fact. The pages should be numbered. The party filing a Response to Proposed Findings of Fact must provide an electronic copy of the Response in a word-processing format *to all parties and to the Office of Administrative Law Judges*.

V. Settlement

The parties are encouraged to discuss settlement of this claim. If a settlement is reached, a copy of the settlement agreement should be filed along with a motion requesting approval of the settlement.



Erin M. Wirth
Administrative Law Judge